

Chaitra W/O Sumit Wali vs Sumit S/O Siddaveerappa Wali on 22 November, 2017

1

C.P.NO. 100100/2017

IN THE HIGH COURT OF KARNATAKA
DHARWAD BEN CH

DATED THIS THE 22 N D DAY OF NOVEMBER 2017

BEFORE

THE HON'BLE MRS . J USTICE K.S .MUDAGAL

CIVIL PETITION N O. 100100/ 2017

BETWEEN:

CHAITRA W/O. SUMIT WALI
AGE: 32 YEARS , OCC:AT PRESENT NIL
R/O: #1489 1 S T FLOOR, 6 T H CROSS ,
TYAGARAJ ROAD , K.R. MOHA LLA ,
MYSURU-24, DIST: MYSURU.-570024

... PETITIONER

(BY SRI PRASHAN T S. HOSMANI, AD VOCATE.)

AND:

SUMIT S/O. SIDDA VEERAPPA WA LI
AGE: 37 YEARS , OCC: PRIVATE SERV ICE,
R/O: "S USMIT" 1 S T CROSS ,
SBI COLONY , KES HWAPUR,
HUBBALLI-580023, DIST: DHARWAD .

... RES PONDENT

(BY SRI VISHWAN ATH S. BICHAGAT TI, ADVOCATE.)

2

C.P.NO. 100100/2017

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF CPC, 1908, PRAYING TO TRANSFER THE M.C.NO.107/ 2017, PENDING BEFORE FAMILY COURT, HUBBALLI TO FAMILY COURT, MYSORE, IN THE INTEREST OF JUSTICE AND EQUITY, ETC.,.

THIS CIVIL PETITION COMING ON FOR FINAL DISPOSAL, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Heard.

2. The marriage of the petitioner and the respondent was solemnized on 2.3.2005 at Mysuru. Some matrimonial discord arose between the parties. The petitioner is now residing in Mysuru. She has filed M.C.No.269/2017 before the Family Court, Mysuru, for restitution of conjugal rights. The respondent has filed M.C.No.107/2017 before the Family Court, Hubballi, against the petitioner seeking divorce on the grounds of desertion and cruelty.

3. The petitioner seeks transfer of M.C.No.107/2017 pending before the Family Court, Hubballi, to the Family Court, Mysuru, on the following grounds.

(i) Her medical condition does not permit her traveling.

(ii) She has no independent means of income to bear the litigation expenses.

(iii) She has nobody to support her at Hubballi.

4. To substantiate her contentions, she has produced the copies of lab report dated 19.5.2017 issued by Sri Krishna Ultra Sounds, Mysuru and copy of medical certificate said to be issued by Chyavan Ayuralaya, Mysuru.

5. The respondent opposes the petition on the following grounds.

(i) The medical records produced by the petitioner are concocted one.

(ii) The child born in the wedlock aged 10 years is under his care and therefore traveling to Mysuru causes inconvenience to both of them.

(iii) His mother's health condition is not good.

6. Admittedly the marriage of the parties has taken place at Mysuru and the petitioner is residing at Mysuru. Therefore two of the factors satisfying the jurisdiction to file a petition under section 13 of the Hindu Marriage Act or section 9 of the Hindu Marriage Act stands in favour of the petitioner.

7. Further, the respondent does not dispute that petitioner has no other relatives to support her in Hubballi. No records are produced about the medical condition of the mother of the respondent. Regarding custody of the child, petitioner contends that the respondent has deprived her custody of the child. That is the matter for adjudication in the petitions pending before the Family Courts.

8. It is submitted that the respondent did not appear for mediation when it was referred in M.C.No.269/2017 by the Family Court, Mysuru. It is further submitted that even in the proceedings in Family Court, Hubballi, the respondent sought time for mediation.

9. Having regard to all the aforesaid facts it is just and expedient to grant transfer as prayed for. Therefore the petition is allowed. M.C.No.107/2017 pending before the Family Court, Hubballi, is hereby withdrawn and transferred to the Family Court, Mysuru.

Sd/-

JUDGE Mrk/-